RECORDING REQUESTED BY

Hamed Adibnatanzi
Adib's Persian Rug Co.
1426 S Main Street
Walnut Creek, CA 94596

AND WHEN RECORDED MAIL TO
Adib's Persian Rug Co.
1426 S Main Street
Walnut Creek, CA 94596

Space above this line for recorder's use

APNs: 183-030-005 & 183-030-029

REVOCABLE LICENSE FOR LAND USE

This REVOCABLE LICENSE FOR LAND USE ("**License**" or "**Agreement**") is dated January 10, 2020 ("**Effective Date**"), between JO ANN HANNA, Trustee of the JO ANN HANNA DECLARATION OF TRUST DATED JANUARY 26, 1984, AS AMENDED AND RESTATED ON DECEMBER 18, 1991 ("**Hanna**"), Adibs Invest, LP, a California Limited Partnership ("**Tenant**") and SINOVEST INC., a California Corporation ("**Sinovest**"). Hanna, Tenant, and Sinovest are each a **Party**, and collectively referred to as **Parties**.

RECITALS

A. WHEREAS, Hanna and Sinovest are adjoining landowners whereby Hanna is the owner of APN 183-030-005 commonly known as 1424-1426 S Main Street, Walnut Creek, California ("**Hanna Property"**), Sinovest is the owner of APN 183-030-029 commonly known as 1459-1479 Newell Avenue, Walnut Creek, California ("**Sinovest Property**").

B. WHEREAS, the Parties desire to formalize their pre-existing agreement regarding grant of a mutual revocable license for parking spaces and ingress/egress. The parking spaces noted 1, 2, 6 shall be for the use of Sinovest, and the parking spaces noted as 3, 4, 5, shall be for the use of Hanna, as defined in **Section 2** below ("**Parking Spaces**"); and a revocable license for Hanna's and Sinovest's ingress and egress: (1) through the northeast corner of the Hanna Property to and from the Parking Spaces to the easement identified as Parcel Three in the Legal Description of the Sinovest Property; and (2) the area south of the Parking Spaces on Sinovest's Property for use by Hanna in order to access the Parking Spaces.

C. WHEREAS, it is agreed and acknowledged that the document entitled "Revocable License Agreement for Land Use" dated January 7, 1967 and recorded on January 20, 1967 in the Office of the Contra Costa County Recorder in Book 5289, Page 218 is no longer of any force or effect;

D. WHEREAS, nothing in this Agreement is intended to modify, change, or restrict any pre-existing recorded easement granted to either Party;

REVOCABLE LICENSE AGREEMENT

NOW, THEREFORE, incorporating the foregoing Recitals, and for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. Access. It is acknowledged by the Parties that recorded easements exist as recorded on the titles of the Parties' respective properties. The Parties acknowledge and agree that nothing in this License shall limit, restrict or otherwise reduce any right of use of those recorded easements. Access to the parking spaces contemplated by this License shall at all times be limited to ingress and egress to and from those Parking Spaces and nothing in this License shall be construed as creating a right of way for any Party.

2. Parking. The Parties will provide the parking spaces noted 1, 2, 6 shall be for the use of Sinovest, and the parking spaces noted as 3, 4, 5, shall be for the use of Hanna (collectively "**Parking Spaces**") on **Exhibit C**, attached hereto and incorporated herein ("**Parking Map**") for exclusive use of the respective Party, their tenants, employees and business visitors. At all times during this License, the Parties shall not park any large commercial vehicles in the Parking Spaces that infringe upon the use of adjacent spaces or create an unreasonable restriction on traffic. Each Party agrees to be responsible for the policing of their respective parking spaces by unauthorized 3rd parties.

3. Permissive Use. To the extent that either Party utilizes the property of the other, whether for parking, placing signs, pedestrian, vehicular use, or similar use as designated in this License, said use shall be permissive on the part of the owner of the land, and the other party to this License has no estate in the other's land. The Parties acknowledge they have no obligations to enter into any subsequent agreements that exceed the scope and terms of this Agreement.

4. Termination. This License may be revoked at any time by either Party, with or without cause, upon giving **thirty (30)** days' written notice. Upon expiration of a notice to terminate as outlined in **Paragraph 5** below, the terminating Party may record a notice of termination of this License in the Office of the County Recorder of Contra Costa County and shall provide the non-revoking Party with a file-endorsed copy when available.

4.1 *No Claim of Irrevocability.* The Parties agree that this License shall not become irrevocable at any time regardless of the amount of money or labor expended by either Party in reliance on this License, whether directly or indirectly. The Parties agree that they may not make a claim that the License has become irrevocable based on any expenses incurred, nor will any Party be liable for any additional expenses that may be incurred as a result of a termination of this License by any Party.

5. Notice. Notice required or desired to be given under this License shall be in writing and shall be addressed to the address of the party to be served. The notices addresses of the Parties are

as set forth in below. Each such Notice shall be deemed effective and given (i) upon receipt, if personally delivered, (ii) for any Notice given by overnight courier, the next Business Day after deposit with the courier, (iii) two (2) Business Days after deposit in the United States mail in the County, certified and postage prepaid, properly addressed to the party to be served.

5.1. If to Hanna:

JO ANN HANNA, Trustee of the JO ANN HANNA DECLARATION OF TRUST DATED JANUARY 26, 1984, AS AMENDED AND RESTATED ON DECEMBER 18, 1991
403 Henri Road
Richmond VA 23226

with Copy To:

Harvey Stein Esq.
Law Offices of Harvey W. Stein
1300 Clay Street, Suite 1050
Oakland, CA 94612

5.2. If to Sinovest:

SINOVEST INC.
Attn: Law Offices of Sean T. Chen
125 Railroad Ave Ste 205
Danville, CA 94526

5.3. If to Tenant:

ADIBS INVEST, L.P.
Attn: Rahmatollah Adibnatanzi, General Partner
1426 S. Main Street
Walnut Creek, CA 94596

with Copy To:

Adib Law Firm
1 Sansome Street Ste 3500
San Francisco CA 94104

6. Authority. Each Party represent and warrant to the other Party it has full power and authority to enter into this License and the person signing on behalf of the Party has been fully authorized to do so by all necessary LLC, corporate or partnership action.

7. Indemnity. The Parties shall indemnify, defend (with legal counsel satisfactory to indemnified Party) and hold harmless the indemnified Party, its agents, assigns, guests and

invitees, and each of them from any and all losses, damages, costs, liabilities, claims, expenses, judgments, fees, penalties, and interest, including but not limited to reasonable attorney fees and costs incurred by the indemnified Party, arising from, related to or in connection with, directly or indirectly, the exercise of this License by the Party, its agents or invitees, or any other act or omission of the Party, its agents or invitees, including failure to comply with the obligations of this License. This indemnity shall apply to all losses, except for those losses caused solely by the gross negligence or willful misconduct of the indemnified Party. This indemnity obligation shall include, without limitation, consultant fees, investigation and remediation costs, and all other reasonable costs and expenses incurred by the indemnified Party. The indemnifying Party's obligation to defend shall be immediate, arising at the time a claim is tendered to the Party seeking indemnity, shall continue at all times thereafter, and shall apply to any claim which actually or potentially falls within this indemnity provision even if such allegation is or may be groundless, fraudulent or false. The Parties' obligation under this indemnification section shall survive the termination or expiration of this License.

8. Authority and Costs of Improvements. During the term of this License, Hanna may place reasonably sized signage on the exterior walls of Sinovest's building within the assigned Parking Spaces to denote the exclusive use of those spaces for Hanna's use. Hanna may also paint the asphalt within each Parking Space with lettering to denote the same.

9. No Warranty. The Parties makes no warranty or guaranty of any type to the subject matter contemplated by this License are or will be suitable for the Parties' intended use and the Parties accept the License use in their "As-Is" and "With all faults" condition.

10. Recordation. Hanna and/or Tenant agree to bear the costs related to recordation of this License and shall within **five (5) days** of recordation with the Contra Costa County Recorder, provide a file-endorsed copy of this Agreement to Sinovest at the address listed in **Section 5.2** above.

11. Merger. This License constitutes the entire agreement between the Parties. No waiver, consent, modification or change of terms of this License shall bind either party unless in writing and signed by the Parties. Such waiver, consent, modification or change, if made, shall be effective only in the specific instance and for the specific purpose given. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this License.

12. Review. Each of the Parties hereto acknowledges that (a) such party has read this License in its entirety and understands all of its terms and conditions, (b) such party has had the opportunity to consult with any individuals of its choice regarding its agreement to the provisions contained herein, including legal counsel of its choice, and any decision not to was such party's alone and (c) such party is entering into this License of its own free will, without coercion from any source, based upon its own independent judgment.

13. Construction. The language in all parts of this License shall in all cases be construed as a whole according to its fair meaning and not strictly for or against either Party, it being the intent of the Parties that this License shall be interpreted as if it was prepared by both parties, and any ambiguities shall not be resolved in favor of a Party because all or a portion of this License was

prepared by that Party.

14. Binding on Successor and Assigns. This Agreement, subject to the terms stated herein, shall inure to the benefit of and shall be binding upon the Parties to this Agreement and their respective heirs, successors and assigns and any reference to "Hanna", "Tenant" or "Sinovest" shall also include any successor-in-interest or assignee.

15. Settlement, Release, Acknowledgement and Disclaimer. As of the Effective Date, Hanna and Tenant acknowledge and agree they have no rights in or to the Sinovest Property, and Sinovest acknowledges and agrees it has no rights in or to the Hanna Property, other than as may be set forth in recorded documents to the extent binding upon and burdening each Party's respective property. As of the Effective Date, the Parties hereby settle, agree to quiet title, and disclaim any previous claims with respect to any purported rights in the other Party's property (including but not limited to any alleged claims of prescriptive easements or right of ways), and confirm no rights exist in or to the property of the other Party, other than as may be set forth in recorded documents to the extent binding upon and burdening each Party's respective property. This Section 15 shall survive the termination or expiration of this License.

[SIGNATURE PAGES FOLLOW]

“HANNA”

JO ANN HANNA, Trustee of the JO ANN HANNA DECLARATION OF TRUST DATED JANUARY 26, 1984, AS AMENDED AND RESTATED ON DECEMBER 18, 1991

By:_____
Name: _____
Title: _____

"SINOVEST"

SINOVEST INC., a California Corporation

By: _____

Name: Samantha Guan

Title: President

"TENANT"

ADIBS INVEST, L.P., a California Limited Partnership

By: Rahmatollah Adibnatanzi
Name: Rahmatollah Adibnatanzi
Title: General Partner

NOTARIAL ACKNOWLEDGEMENT

A Notary Public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California)
)
County of _____)

On _____, before me, _____,
Notary Public, personally appeared **Jo Ann Hanna, Trustee,** who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal

PLACE NOTARY SEAL ABOVE

SIGNATURE _____

NOTARIAL ACKNOWLEDGEMENT

A Notary Public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California)
)
County of SAN FRANCISCO)

On JANUARY 14, 2020, before me, JOHN C. LI,
Notary Public, personally appeared **Samantha Guan,** who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of State of California that the foregoing paragraph is true and correct.

JOHN C LI
Notary Public - California
San Francisco County
Commission # 2174382
My Comm Expires Dec 30, 2020

PLACE NOTARY SEAL ABOVE

WITNESS my hand and official seal

SIGNATURE _____

NOTARIAL ACKNOWLEDGEMENT

A Notary Public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California)
)
County of Contra Costa)

On Jan 16, 2020, before me, Haresh M - Rajani,
Notary Public, personally appeared **Rahmatollah Adibnatanzi** who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal

PLACE NOTARY SEAL ABOVE

SIGNATURE M Rajani

NRO1 HARESH M. RAJANI
COMM. #2224670
Notary Public - California
Contra Costa County
My Comm. Expires Dec. 8, 2021 NRO1

EXHIBITS TO FOLLOW

EXHIBIT A

LEGAL DESCRIPTION OF SINOVEST PROPERTY

APN 183-030-029

commonly known as 1459-1479 Newell Avenue, Walnut Creek, California

Order No. 129485-SP

EXHIBIT "A"

BOOK 17208 PAGE 620

The land referred to in this Report is situated in the State of California, County of Contra Costa, City of Walnut Creek, and is described as follows:

PARCEL ONE:

That portion of Lot 3, as shown on the Map of Juanita Rancho, filed December 30, 1909, in Book 2 of Maps, page 42, in the office of the County Recorder of Contra Costa County, which lies West of the center line of San Ramon Creek.

EXCEPTING THEREFROM:

That portion thereof, described as follows:

Beginning on the east line of the State Highway leading from Walnut Creek to Alamo at the north line of said Lot 3; thence from said point of beginning south 13° east along said State Highway, 132 feet to the south line of said Lot 3; thence north 77° 06' east along said south line, 130 feet; thence north 8° 59' west 132.31 feet to the north line of said Lot 3; thence south 77° 06' west along said north line, 139.27 feet to the point of beginning.

ALSO EXCEPTING THEREFROM:

That portion thereof described in the deed to the City of Walnut Creek, recorded August 25, 1975 in Book 7601, OR, page 966

PARCEL TWO:

The parcel of land described as Parcel One in the deed from Melvin C. Bolender, et ux, to Edward B. Radford, et ux, dated September 2, 1955, recorded October 1, 1956, in Book 2854 of Official Records, page 76, as follows:

"Portion of Lot 4, as designated on the map entitled, 'Map of The Rancho Juanita, a portion of the Ranchos San Miguel and San Ramon', which map was filed in the office of the Recorder of the County of Contra Costa, State of California, on December 30, 1909, in Book 2 of Maps, page 42, described as follows:

Beginning on the north line of said Lot 4, distant thereon North 77° 06' east, 170 feet from the northwest corner thereof thence from said point of beginning continuing north 77° 06' east along said north line, 145.55 feet, more of less, to the center line of San Ramon Creek; thence southwesterly along said center line to a point which bears south 12° 54' east from the point of beginning; thence north 12° 54' east from said point of beginning; thence north 12° 54' west to the point of beggining."

PARCEL THREE:

A right of way, (not to be exculsive) as an appurtenance to Parcel Two above for use as a roadway for vehicles af all kinds, pedestrians and animals, for water, gas, oil and sewer pipe lines, and for telephone, electric light and power lines, together with the necessary conduits to carry said lines over a strip of land 5 feet in width the north line of which is described as follows:

(Legal Description Continued)

Order No. 129485-SP

EXHIBIT "A"
(Continued)

BOOK 17208 PAGE 621

Beginning at the northwest corner of said Lot 4; thence from said point of beginning north 77° 06' east along the north line of said Lot 4, 170 feet to the northwest corner of Parcel Two above.

PARCEL FOUR:

A right of way (not to be exclusive) as an appurtenance to Parcels One and Two, above, for use as a roadway for vehicles of all kinds, pedestrians and animals, for water, gas, oil, and sewer pipe lines, and for telephone, electric light and power lines, together with conduits to carry said lines over a strip of land 5 feet in width the south line of which is described as follows:

Beginning at the southwest corner of Lot 3 above referred to; thence from said point of beginning, north 77° 06' East, along the south line of said Lot 3, 130 feet to the southwest corner of Parcel One above.

The north line of said 5 feet strip shall terminate on the west by the west line of said Lot 3 and on the east by the west line of Parcel One above.

PARCEL FIVE:

An easement (not to be exclusive) as an appurtenance to Parcels One and Two above, for parking priviledges and for ingress and egress over a strip of land 28 feet in width the north line of which is described as follows:

Beginning aty the northwest corner of Lot 3 above referred to; thence from said point of beginning, North 77° 06' east, along the north line of said Lot 3, 139.27 feet to the northwest corner of Parcel One above.

EXCEPTING FROM PARCELS FOUR AND FIVE:

The interest conveyed to City of Walnut Creek by deed from Edward B. Radford, et ux, recorded February 21, 1956, in Book 2711 of Official Records, page 326.

(Being APN 183-030-029)

END OF DOCUMENT

EXHIBIT B

LEGAL DESCRIPTION OF HANNA PROPERTY

APN 183-030-005

commonly known as 1424-1426 S Main Street, Walnut Creek, California

LEGAL DESCRIPTION

The land referred to is situated in the County of Contra Costa, City of Walnut Creek, State of California, and is described as follows:

PARCEL ONE:

Portion of Lot 4, as designated on the map entitled "Map of The Rancho Juanita, a portion of the Ranchos San Miguel and San Ramon", which map was filed in the office of the Recorder of the County of Contra Costa, State of California, on December 30, 1909 in Volume 2 of Maps, at page 42, described as follows:

Beginning on the East line of the State Highway leading from Alamo to Walnut Creek, at the Northwest corner of said Lot 4; thence from said point of beginning North 77° 06' East, along the line of said Lot 4, 170 feet to the West line of the parcel of land described as Parcel One in the deed from Melvin C. Bolender, et ux, to Edward B. Radford, et ux, recorded October 1, 1956 in Volume 2854 of Official Records, at page 76; thence South 12° 45' East, along said West line to the most Southerly corner of said Radford parcel (2854 OR 76); thence South 33° 54' West, along the center line of San Ramon Creek, to the South line of said Lot 4; thence South 77° 06' West, along said South line, to the East line, 130.5 feet to the point of beginning.

PARCEL TWO:

The right of way granted in the deed from Edward B. Radford, et ux, to Melvin C. Bolender, dated September 2, 1955 and recorded October 1, 1956 in Volume 2854 of Official Records, at page 84, as follows:

"Portion of Lot 3, as designated on the map entitled "Map of The Rancho Juanita, a portion of the Ranchos San Miguel and San Ramon", which map was filed in the office of the Recorder of the County of Contra Costa, State of California, on December 30, 1909 in Volume 2 of Maps, at page 42, described as follows:

A right of way (not to be exclusive) as an appurtenance to the lands of the grantee herein, lying within Lot 4, as designated on said map (2 M 42), for use as a roadway for vehicles of all kinds, pedestrians and animals, for water, gas, oil, and sewer pipe lines, and for telephone, electric light and power lines, together with conduits to carry said lines over a strip of land 5 feet to width, the South line of which is described as follows:

Beginning at the Southwest corner of said Lot 3; thence from said point of beginning North 77° 06' East along the South line of said Lot 3, 170 feet."

EXCEPTING FROM PARCEL TWO: That portion thereof lying within the strip of land described in the deed from Edward B. Radford, et al, to City of Walnut Creek, dated January 18, 1956 and recorded February 21, 1956 in Volume 2711 of Official Records, at page 326.

APN: 183-030-005-7

Commonly knows as: 1424 and 1426 South Main Street
Walnut Creek, CA 94596
Contra Costa County

EXHIBIT C

PARKING MAP DEPICTION

